



File No.: EXP202411667

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On September 18, 2023, the Director of the Spanish Agency for Data Protection issued a resolution in the procedure for the exercise of rights of file number EXP202305876 followed against RIVENDELL TECHNOLOGY, S.L. (hereinafter, the respondent).

In this procedure, it is recorded that the complainant exercised the right of access to the personal data concerning them, without such request being duly addressed, issuing a resolution that required the following:

“FIRST: TO ESTIMATE the complaint filed by A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge RIVENDELL TECHNOLOGY, S.L., with NIF B06882880, to send the complainant a certification within ten working days following the notification of this resolution, addressing the exercised right of Access or denying it with justification indicating the reasons why the request cannot be attended to, in accordance with the provisions established in the body of this resolution.

The actions carried out as a consequence of this Resolution must be communicated to this Agency within the same period. The non-compliance with this resolution could lead to the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned, in accordance with Article 58.2 of the GDPR.”

SECOND: The notification of the resolution of the procedure for the exercise of rights, in which the respondent was granted a period of ten working days to address the exercise of the right of access, was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) through electronic means, not being collected by the responsible party within the availability period, as recorded in the acknowledgment of receipt in the file, and therefore understood to be carried out in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP on September 29, 2023.

Although the notification was validly carried out by electronic means, for informational purposes, a copy of the resolution was sent by postal mail, which was collected by the respondent on January 18, 2024, as recorded in the acknowledgment of receipt in the file.

C/ Jorge Juan, 6

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28001 – Madrid

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THIRD: After the period granted for the required actions in said resolution had elapsed and having presented the complainant, on October 16, 2023, with entry registration number REGAGE23e00069770731, a written statement indicating that the resolution had not been complied with, a request was sent three times to the respondent to submit, within five working days, a certification of compliance with said resolution to the complainant and, within ten working days, to notify this Agency of the measures adopted.

FOURTH: The three notifications of the aforementioned request were carried out in accordance with the rules established in the LPACAP.

The first and third notifications, which were sent by postal mail, were returned to sender by the postal service as unknown on March 15 and June 25, 2024, as recorded in the acknowledgments of receipt in the file, despite one being sent to the registered office recorded in the Commercial Registry and the other to the tax address provided by the State Agency for Tax Administration.

In accordance with Article 42.1 of the LPACAP, the notifications of the requests sent by post were also made available to the interested party by electronic means through the single enabled electronic

address.

The second notification, which was carried out by electronic means, was not collected by the responsible party within the availability period, as recorded in the acknowledgment of receipt in the file, and therefore understood to be carried out in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP on March 30, 2024.

FIFTH: After the period of the initial resolution and the subsequent requests had elapsed, the respondent has not sent a response to this Agency that certifies that they have attended to the exercised right of access or that they have denied it with justification indicating the reasons why the request cannot be attended to.

SIXTH: No ordinary administrative appeal can be filed against the aforementioned resolution due to the expiration of the established deadlines for it. Furthermore, the interested party has not expressed their intention to file a contentious-administrative appeal, nor does this Agency have any record that such an appeal has been filed and that a precautionary suspension of the resolution has been requested.

SEVENTH: On September 11, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR.

EIGHTH: The initiation agreement was notified to the respondent, in accordance with the rules established in the LPACAP, by means of an announcement published in the Official State Gazette dated September 30, 2024, after the attempt at postal notification at the respondent's tax address proved unsuccessful, as recorded in the file.

C/ Jorge Juan, 6

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28001 – Madrid

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3/6

According to Article 42.1 of the LPACAP, the notification of the initiation agreement was made available to the interested party also by electronic means through the single enabled electronic address.

NINTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP and the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the party being claimed.

Article 64.2.f) of the LPACAP - a provision of which the claimed party was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the claimed party, and the sanction that could be imposed.

Therefore, considering that the claimed party has not submitted allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

TENTH: According to the report obtained from the AXESOR tool, the entity RIVENDELL TECHNOLOGY, S.L. is a company, established in 2021 with a share capital of ***AMOUNT.1 euros, for which there is no information available regarding its income statement.

In view of all the actions taken, the following facts are considered proven by the Spanish Agency for Data Protection in this procedure,

PROVEN FACTS

FIRST: The resolution of the rights exercise procedure of file number EXP202305876 and the requirements for compliance with it indicated in the first, second, third, and fourth antecedents were notified in accordance with the provisions of the LPACAP. This resolution became firm and enforceable due to the passage of the deadlines established for the filing of the resources indicated therein.

SECOND: The claimed party has not sent any response to this Agency that proves compliance with

the resolution.

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation breached

In light of the facts presented, it is considered that the claimed party has breached the resolution of the Spanish Agency for Data Protection.

Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement attributable to the claimed party for violation of Article 58.2.c) of the GDPR, which states the following:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

c) to order the controller or processor to comply with the requests for the exercise of the data subject's rights under this Regulation;"

III

Classification and qualification of the infringement

This infringement is classified under Article 83.6 of the GDPR, which stipulates the following:

"Failure to comply with the resolutions of the supervisory authority under Article 58, paragraph 2, shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount."

For the purposes of the limitation period for infringements, the infringement attributed is subject to a three-year limitation period, in accordance with Article 72.1 of the LOPDGDD, which classifies the following conduct as very serious:

"m) The failure to comply with the resolutions issued by the competent data protection authority in the exercise of the powers conferred by Article 58.2 of Regulation (EU) 2016/679."

IV

Imposed sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria

C/ Jorge Juan, 6

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28001 – Madrid

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5/6

which establishes Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 of the GDPR. Furthermore, to ensure a consistent application of the GDPR, the Guidelines 04/2022 formulated by the European Data Protection Board on the calculation of fines under the GDPR must be taken into account.

In light of the facts presented, it is deemed appropriate to impose a sanction on the respondent for the violation of Article 58.2 of the GDPR as classified in Article 83.6 of the GDPR. The sanction to be imposed is an administrative fine in the amount of 900.00 euros.

Adoption of measures

This Agency agrees to impose on the responsible party the adoption of appropriate measures to align its actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, which states that each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Article 83.6, and such conduct may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO IMPOSE on RIVENDELL TECHNOLOGY, S.L., with NIF B06882880, for an infringement of Article 58.2 of the GDPR, classified in Article 83.6 of the GDPR, a fine of 900.00 euros.

SECOND: TO ORDER RIVENDELL TECHNOLOGY, S.L., with NIF B06882880, that pursuant to Article 58.2.d) of the GDPR, within ten working days from the date this resolution becomes final and enforceable, to send to the complainant a certification addressing the exercised right of access or to deny it with justification indicating the reasons why the request cannot be met, in accordance with the provisions established in the resolution of the rights exercise procedure of file number EXP202305876. Furthermore, the actions taken must be communicated to this Agency within the same timeframe.

THIRD: TO NOTIFY this resolution to RIVENDELL TECHNOLOGY, S.L.

FOURTH: This resolution shall be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b)

C/ Jorge Juan, 6

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28001 – Madrid

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6/6

of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN:

ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

Upon receiving the notification and once it is executive, if the date of executive status falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months

from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

Mar España Martí

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